

Amendment No. 2 to HB0005

Terry
Signature of Sponsor

AMEND Senate Bill No. 419

House Bill No. 5*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 29-39-102(d), is amended by adding the following as a new subdivision:

(5)

(A) Wrongful death of an unborn child at any stage of gestation in utero when an abortion-inducing drug is sent directly to a patient by a defendant via courier, delivery, or mail service in violation of § 63-6-1103(b).

(B) For purposes of this subdivision (d)(5), "abortion-inducing drug" means mifepristone or misoprostol. This subdivision (d)(5) does not prohibit the lawful use of mifepristone or misoprostol by a pharmacist or physician.

(C) This subdivision (d)(5) does not apply to:

(i) A pharmacist;

(ii) A physician;

(iii) A motor carrier or freight forwarder, as defined in 49 U.S.C. § 13102; or

(iv) An air carrier, as defined in 49 U.S.C. § 40102.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to a cause of action filed on or after that date.